

Court No. - 21

Case :- WRIT - C No. - 6938 of 2024

Petitioner :- Prasant Kumar Gupta

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Anil Kumar,Rohit Kumar Singh

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

Put up as fresh day after tomorrow i.e. 06.03.2024.

Order Date :- 4.3.2024

Sazia

(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. None present for the parties even in the second round.
2. List as fresh on 20.03.2024.

Order Date :- 6.3.2024

Sazia

(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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Hon'ble Kshitij Shailendra,J.

1. From the documents produced by Shri Chetan Chatterjee, learned counsel for the respondents Electricity Department, it is evident that after issuance of notice of provisional assessment dated 19.12.2021, the petitioner filed an application on 05.10.2021 mentioning that no inspection was carried out at his premises. The same objection was taken by him in his objection dated 12.01.2023.

2. However, the respondents ignoring the said objection have passed order of final assessment stating that no objection was received from the petitioner. We also find that in the notice of provisional assessment, no date for hearing was fixed contrary to the provisions of Clause 6.8 of U.P. Electricity Supply Code, 2005.

3. Let the instant matter be connected with Writ C No. 6928 of 2024 filed by the same petitioner in connection with other assessment proceedings and be listed on the date fixed in the said case.

4. The Managing Director of the concerned Discom shall examine how the concerned Executive Engineer has passed final assessment order ignoring the objection. Even while deciding the subsequent objection, although it is mentioned that videography was got done, but no finding has been recorded that inspection report bears signatures of the petitioner or his representatives and whether or not it was carried out in his presence or not.

5. Shri Chetan Chatterjee will communicate the instant order to the concerned for necessary compliance and for filing affidavit regarding the decision taken by him.

Order Date :- 20.3.2024

Sazia

(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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1. The petitioner has challenged the assessment proceedings and the recovery certificate dated 17.11.2023 issued on its basis. The assessment order has purportedly been made under Section 126 of Electricity Act, 2003.
2. Sri Chetan Chatterjee, learned counsel for the respondent-Electricity Department, on instructions, states that the impugned recovery has been withdrawn and now fresh order will be passed after following the procedure prescribed.
3. Accordingly, the petition stands **disposed of** in terms of the statement made by Sri Chetan Chatterjee, learned counsel for the respondent-Electricity Department.

Order Date :- 1.4.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)